PROTECTION OF PERSONAL INFORMATION & DATA HANDLING

AGREEMENT

Between

THE USER

And

MC BRAINSTORM (PTY) LIMITED
Registration Number: 2022/857387/07

Trading under the name and style of

KAPA ME

("the Operator")

Together Referred to as "the Parties"

1. **Applicable Definitions**:

1.1. "Applicable Laws" means all and any statutes, subordinate legislation, common law, regulations, ordinances, by-laws, directives, codes of practice, rules, circulars, guidance notices, judgments and decisions of any competent authority, or any governmental, intergovernmental or agency, department or regulatory, self-regulatory or other authority or organisation and any replacement or amendment thereof, and other similar provisions, which are in force and effect.

1.2. "Data" means any data, including Personal Information as by the definition thereof set out in the Electronic Communications and Transactions Act 25

of 2002, the Protection of Personal Information Act 4 of 2013 and any equivalent legislation of the jurisdiction where the Services are being provided and/or performed, by the Operator or Processed on behalf of The User by the Operator.

1.3. "Industry Best Practice" means the exercise of the degree of skill, diligence, prudence and foresight which would reasonably and ordinarily be expected from a skilled and experienced operator engaged in the providing the Services.

1.4. "Processing" means any use as set out in the privacy policy and any operation or activity or any set of operations, whether or not by automatic means, as defined by the Protection of Personal Information Act 4 of 2013 or equivalent legislation of the jurisdiction(s) applicable to the Parties and/or this Agreement.

1.5. "Processing" and "Processed" shall be similarly defined.

1.6. "Personal Information" means information relating to an identifiable natural or juristic person, as defined by the Protection of Personal Information Act 4 of 2013 or equivalent legislation of the jurisdiction(s) applicable to the Parties and/or this Agreement.

1.7. "Services" means the services to be provided by the Operator to The User.

2. Data Protection & Handling

2.1. The Parties acknowledge and agree that all Data, whether such is provided by The User to the Operator or which the Operator may be exposed to during the course of carrying our any of its agreements with The User, shall constitute confidential information and where applicable, intellectual

property belonging to The User and may not be disclosed unless required by law or in the course of the proper performance of the Operator.

2.2. The Operator shall perform its duties and obligations in terms of this agreement and any other agreement concluded with The User strictly in compliance with the Protection of Personal Information Act, 2013 (POPIA) and all other laws, policies, and procedures (Applicable Laws), relating to the protection, storage, handling, privacy, processing, and destruction of Personal Information.

2.3. The Operator hereby warrants, represents and undertakes in favour of The User that:

2.3.1. Strictly comply with all Applicable Laws and with all the provisions and requirements of any The User data protection policies and procedures which may be in force from time to time.

2.3.2. It shall only process Personal Information where it is lawful to do so and said processing shall be conducted in a reasonable manner that does not infringe the processing conditions and privacy of the Data Subject.

2.3.3. It shall only process Personal Information, in order to perform in terms of its contractual obligations with The User, in order to comply with an obligation imposed by law and to protect the legitimate interests of the Data Subject.

2.3.4. It shall not Process Data for any purpose other than the above without the express prior written consent from The User, and to the extent necessary to provide the services to The User.

2.3.5. It shall ensure that all the systems and operations which it uses to provide the services and/or to Process the Data, shall meet the minimum standard and security required by all Applicable Laws.

2.3.6. It shall only process Personal Information in a manner which accords with the purpose for which it is collected, that is relevant to said purpose and which is not excessive.

2.4. The Operator shall take appropriate and reasonable technical and organisational measures, in compliance with the minimum standard required by all Applicable Laws and Industry Best Practice, to prevent the loss, damage, unauthorised destruction and unlawful access of Data.

2.5. In the event of unlawful or unauthorised access, disclosure, copying, destruction or alteration of Data or Personal Information, the Operator shall inform The User as soon as reasonably possible in a manner enabling The User to respond appropriately.

2.6. The Operator shall take reasonable measures to identify all reasonably foreseeable internal and external risks posed to Data under the Operator's possession or control and establish and maintain appropriate safeguards against any risks identified.

2.7. The Operator shall regularly verify that the safeguards are effectively implemented and keep record of such verification.

2.8. The safeguards shall be updated continually in response to new risks or deficiencies in previously implemented safeguards. Records so kept must be available for inspection on 7 (seven) days' written notice from The User.

2.9. The Operator agrees to ensure that all Personal Information processed, sent outside and/or received from outside South Africa is adequately

protected and securely sent. Further, such processing shall occur only where required by law or an obligation in terms of a contract and shall be in compliance with The User's policies and procedures as it relates to data protection.

2.10. The Operator agrees to keep complete, accurate and up to date records and to give effect to a Data Subjects right to correct, request access to or object to the processing of their Personal Information, where reasonable and applicable.

2.11. The Operator agrees to only delete Personal Information on the written instruction of The User and refer all requests for destruction and deletion to The User for confirmation prior to the deletion.

2.12. In the event that the Operator is responsible for a breach or failure to adhere to the Applicable Laws, it shall not be liable for any damages, claims or fines imposed on The User as a consequence of said breach. The User hereby indemnifies the Operator in the event of any breach whilst processing any Personal Informative.

2.13. The parties acknowledge and agree that, should it be found that the Operator breach's its obligations set out herein, the User shall notify the Operator of same within 7 business days of said breach calling the Operator to rectify same and if not rectified within 14 business days the matter will be resolved by alternative dispute resolution mechanisms prior to instituting any legal action.

2.14. the Parties indemnify and hold each other harmless against any loss, claim, harm or damage, of whatever nature, suffered or sustained by one another pursuant to a breach by a party of the provisions of this agreement.